

# The Freedom of Movement of United Nations' Peacekeeping Forces: UNIFIL's Mission in Lebanon

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## I. Introduction

On 10 June 2025, following an attack that targeted the United Nations Interim Force in Lebanon (henceforth “UNIFIL”), the latter made a statement that reads “Freedom of movement is a core requirement for the implementation of UNIFIL’s mandate. This includes the ability to operate independently and impartially, as outlined in UN Security Council Resolution 1701. Any restriction on this freedom — while conducting operational activities with or without LAF [Lebanese Armed Forces]— constitutes a violation of that resolution. It is unacceptable that UNIFIL peacekeepers continue to be targeted. UNIFIL calls on the Lebanese authorities to take all necessary measures to ensure that its peacekeepers can carry out their duties without obstruction or threat.”<sup>2</sup>

This statement raises several legal questions that this piece aims to explore. What are the limits of the freedom of movement of UNIFIL (large and small movements, within its area of operation, in conformity with its mandate and its rules of engagement)? Is it limited exclusively to coordinated and adjacent patrols with the Lebanese Armed Forces (henceforth “LAF”)? Does coordination with LAF imply that UNIFIL should obtain prior authorization or permission to carry out its mandated tasks? How is coordination implemented in the case of announced and unannounced patrols?

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2 <https://peacekeeping.un.org/en/unifil-statement-10-june-2025> (Consulted on the first of February 2026).

At the time of writing this article, the renewal of UNIFIL's last mandate has been set in the United Nations Security Council Resolution (henceforth "UNSCR") 2790 (2025)\ to expire on the 31<sup>st</sup> of December 2026, which brought decisive answers to all of the aforementioned questions, after years of a continuous debate regarding the freedom of movement of UNIFIL. This article is relevant to policy makers, international law scholars interested in understanding the freedom of movement of UNIFIL south of Litani river in its historical and legal context based strictly on the wording of treaties and Security Council Resolutions.

The following legal analysis will address the questions mentioned above based on the relevant legal instruments, namely the relevant UNSCRs<sup>3</sup> and the 1995 "Agreement between the United Nations and The Government of Lebanon on The Status of the United Nations Interim Force in Lebanon" (henceforth "SOFA") (Section 1), in an attempt to understand the input of the last UNSCR adopted (2790 (2025)) (Section 2).

### **Section 1: Legal instruments.**

It is essential to examine all UNSCRs relevant to the UNIFIL's operations in Lebanon except for UNSCR 2790 (2025) (paragraph 1) and SOFA (paragraph 2), in order to determine the binding obligations of UNIFIL regarding its movement in Lebanon (paragraph 3).

#### **Paragraph1: Security Council Resolutions.**

It is significant to determine the different legal effects of UNSCRs in general (A) in order to determine in specific which of the aforementioned UNSCRs those that generate binding obligations (B).

#### **A- The legal effects of UNSCRs.**

The United Nations is not entitled to intervene in matters which are essentially within the domestic jurisdiction of any State, but this principle shall not prejudice the application of enforcement measures taken by the United Nations' Security Council (henceforth "Security Council") under Chapter VII<sup>4</sup> of the Charter<sup>5</sup>.

3 425 (1978), 1701 (2006), 1773 (2007); 1832 (2008); 1884 (2009); 1937 (2010); 2004 (2011); 2064 (2012); 2115 (2013); 2172 (2014); 2236 (2015); 2305 (2016); 2373 (2017); 2433 (2018); 2485 (2019); 2539 (2020); 2591 (2021); 2650 (2022); 2695 (2023); 2749 (2024), 2790 (2025).

4 In the following developments, wherever any Chapter is mentioned it would mean a Chapter of the Charter.

5 The Charter, Article 2 (par. 7).

The Security Council adopts resolutions that “are not legislations”, “nor are they judgments or quasi-judgments”, “nor are they treaties”<sup>6</sup>. Rather, it adopts: decisions that create obligations under Chapter VII and Article 25 (a), recommendations that have less rigid legal effect, under Chapter VI (b) or half decisions and half recommendations commonly referred to as being adopted under “Chapter six and a half” (c).

#### **a - Decisions.**

Chapter VII is relevant to “Action with Respect to Threats to the Peace, Breaches of the Peace, and Acts of Aggression”. “As general practice nowadays, when the Council intends a provision to be mandatory, the resolution contains or refers to an Article 39 determination, and includes the words “acting under Chapter VII, as well as the word “decides””<sup>7</sup>.

The UNSCR is therefore binding when:

- 1 - There is an express mention of Chapter VII, Articles 39<sup>8</sup>, 40<sup>9</sup>, 41<sup>10</sup> or 42<sup>11</sup>.
- 2 - The wording of the relevant OPs covers interventions such as:
  - Actions with respect to threats to the peace, breaches of peace and acts of aggression.
  - Measures taken to restore international peace and security.

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6 Michael C. Wood, “The Interpretation of Security Council Resolutions”, [https://www.mpil.de/files/pdf2/mpunyb\\_wood\\_2.pdf](https://www.mpil.de/files/pdf2/mpunyb_wood_2.pdf), p. 77 – p 78 – p79. Consulted on the second of February 2026.

7 Michael C. Wood, *Ibid.*, p 82.

8 “The Security Council shall determine the existence of any threat to the peace, breach of the peace, or act of aggression and shall make recommendations, or decide what measures shall be taken in accordance with Articles 41 and 42, to maintain or restore international peace and security”.

9 “In order to prevent an aggravation of the situation, the Security Council may, before making the recommendations or deciding upon the measures provided for in Article 39, call upon the parties concerned to comply with such provisional measures as it deems necessary or desirable. Such provisional measures shall be without prejudice to the rights, claims, or position of the parties concerned. The Security Council shall duly take account of failure to comply with such provisional measures”.

10 “The Security Council may decide what measures not involving the use of armed force are to be employed to give effect to its decisions, and it may call upon the Members of the United Nations to apply such measures. These may include complete or partial interruption of economic relations and of rail, sea, air, postal, telegraphic, radio, and other means of communication, and the severance of diplomatic relations”.

11 “Should the Security Council consider that measures provided for in Article 41 would be inadequate or have proved to be inadequate, it may take such action by air, sea, or land forces as may be necessary to maintain or restore international peace and security. Such action may include demonstrations, blockade, and other operations by air, sea, or land forces of Members of the United Nations”.

- Provisional measures taken to prevent an aggravation of the situation.
- Measures taken to give effect to its decisions that could be: complete or partial interruption of economic relations and of rail, sea, air, postal, telegraphic, radio, and other means of communication, and the severance of diplomatic relations.
- Actions taken by air, sea, or land forces as may be necessary to maintain or restore international peace and security (demonstrations, blockade, and other operations by air, sea, or land forces of Members of the United Nations).

With regard to resolutions not expressly adopted under Chapter VII, it is conceivable to consider them binding not only but especially when the word "decides" is used (or "demands", "calls upon", "authorizes" or "calls upon in accordance with Article 25 of the Charter"). The legal basis of those decisions is Article 25, which states: "The Members of the United Nations agree to accept and carry out the decisions of the Security Council in accordance with the present Charter." This raises an important question: "does Article 25 of the Charter apply only to decisions taken by the Security Council under Chapter VII?"<sup>12</sup>. Can it, therefore, serve as the legal basis for both binding decisions? It is therefore a matter of interpretation.

In this context, the Advisory Opinion rendered by the International Court of Justice (henceforth ICJ) concerning the continued presence of South Africa in Namibia sheds lights on this matter: "It has been contended that Article 25 of the Charter applies only to enforcement measures adopted under Chapter VII of the Charter. It is not possible to find in the Charter any support for this view. Article 25 is not confined to decisions in regard to enforcement action but applies to "the decisions of the Security Council" adopted in accordance with the Charter. Moreover, that Article is placed, not in Chapter VII, but immediately after Article 24 in that part of the Charter which deals with the functions and powers of the Security Council . . . The language of a resolution of the Security Council should be carefully analyzed before a conclusion can be made as to its binding effect. In view of the nature of the powers under Article 25, the question whether they have been in fact exercised is to be determined in each case, having regard to the terms of the resolution to be interpreted, the discussions leading to it, the Charter provisions invoked and, in general, all circumstances that might assist in determining the legal consequences of the resolution of the Security Council."<sup>13</sup>

12 ROSALYN HIGGINS, "The advisory opinion on Namibia: which UN resolutions are binding under Article 25 of the Charter?", *The International and Comparative Law Quarterly*, Vol. 21, No. 2 (Apr., 1972), Cambridge University Press, p 271.

13 ICJ, *Legal consequences for States of the continued presence of South Africa in Namibia (South West Africa) notwithstanding Security Council resolution 276 (1970)*, advisory opinion of June 21st 1971, in: *ICJ Reports*, 1971, paragraph 114, p. 53.

### **b - Recommendations.**

The Security Council can adopt resolutions that do not create obligations i.e., recommendations, based on Articles 36<sup>14</sup> and 38<sup>15</sup> of the Charter. The use of the words "encourages," "invites" or "urges" proves that the resolution is a recommendation.

### **c - half decisions-half recommendations.**

“Former UN Secretary General Dag Hammarskjöld, recognizing the improvised nature of any type of UN collective security attempted during the Cold War, labeled UN peacekeeping operations as “Chapter Six and a Half” to characterize their tenuous legitimacy under the Charter. Council recommendations under Chapter Six during the Cold War were not enforceable, while full-scale military intervention under Chapter Seven could never be agreed upon by the superpowers.”<sup>16</sup>

More recently, some scholars have used this term to describe peacekeeping operations that fall into the "grey area" between traditional peacekeeping (under Chapter VI) and peace enforcement (under Chapter VII). These operations lack a clear doctrinal foundation and are increasingly associated with peacekeeping involving the use or implied threat of force, often launched as humanitarian interventions in civil wars or conflicts within societal breakdown<sup>17</sup>.

Under this category, certain UNSCRs would include both binding obligations generated according to Article 25 of the Charter and non-binding recommendations. A typical example would be UNSCR 1244 relevant to the Kosovo crisis, adopted on 10 June 1999 which includes binding obligations in OPs 1<sup>18</sup>, 3<sup>19</sup>, 5<sup>20</sup>, 6<sup>21</sup>, 7<sup>22</sup> and 11<sup>23</sup> and non-binding-recommendations in OPs 2<sup>24</sup>, 4<sup>25</sup>, 8<sup>26</sup>, 10<sup>27</sup>, 12<sup>28</sup> and 13<sup>29</sup>.

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14 “1.The Security Council may, at any stage of a dispute of the nature referred to in Article 33 or of a situation of like nature, recommend appropriate procedures or methods of adjustment. 2.The Security Council should take into consideration any procedures for the settlement of the dispute which have already been adopted by the parties. 3.In making recommendations under this Article the Security Council should also take into consideration that legal disputes should as a general rule be referred by the parties to the International Court of Justice in accordance with the provisions of the Statute of the Court”.

15 “Without prejudice to the provisions of Articles 33 to 37, the Security Council may, if all the parties to any dispute so request, make recommendations to the parties with a view to a pacific settlement of the dispute”.

16 John F. Hillen III, “UN Collective Security: Chapter Six and a Half”, The US Army War College Quarterly: Parameters, volume 24, Number 1 Parameters 1994, p. 28.

17 <https://unterm.un.org/unterm2/en/view/1f708624-5138-454b-8ecb-c193f8530974>. Consulted on 25 January 2026.

18 “Decides on the deployment of international civil and security presences in Kosovo”.

In the following, and based on the aforementioned criteria, I will analyze UNSCRs 425 (1978), 1701 (2006), 1773 (2007); 1832 (2008); 1884 (2009); 1937 (2010); 2004 (2011); 2064 (2012); 2115 (2013); 2172 (2014); 2236 (2015); 2305 (2016); 2373 (2017); 2433 (2018); 2485 (2019); 2539 (2020); 2591 (2021); 2650 (2022); 2695 (2023) to assess whether each is binding and to interpret the relevant OPs concerning the freedom of movement of UNIFIL in Lebanon.

## **B- Relevant UNSCRs.**

### **A. UNSCR 425 (1978).**

UNIFIL was originally established by UNSCR 425 (1978), which states "The Security Council ... 3. *Decides*, in the light of the request of the Government of Lebanon, to establish immediately under its authority a United Nations interim force for Southern Lebanon for the purpose of confirming the withdrawal of Israeli forces, restoring international peace and security and assisting the Government of Lebanon in ensuring the return of its effective authority in the area, the force to be composed of personnel drawn from Member States ...". In addition, the resolution "calls" for the respect of the territorial integrity of Lebanon and for the immediate cease of the military action of Israel against Lebanon (Ops 1 and 2).

UNIFIL's mandate therefore recalls measures of pacific settlement of disputes (Chapter VI) (confirming the withdrawal of Israeli Forces), and actions with respect to threats to the peace, and acts of aggression (Chapter VII) (restoration of international peace and security and assisting the Government of Lebanon in ensuring the return of its effective authority in the area).

### **B. UNSCR 1701 (2006).**

The following factors show that SCR 1701 is adopted under "Chapter six and a half" for it includes binding obligations including those relevant to its freedom of movement (under article 25 of the Charter) and mere recommendations.

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19 "Demands that the Federal Republic of Yugoslavia withdraw all military, police, and paramilitary forces".

20 "Decides that UNMIK will be the international civil presence, with specific responsibilities".

21 "Authorizes KFOR (Kosovo Force) to use force to maintain peace and security".

22 "Mandates KFOR to ensure a safe environment for all people in Kosovo".

23 "Directs UNMIK to establish an interim administration for Kosovo".

24 "Calls for immediate and verifiable withdrawal of Yugoslav forces".

25 "Calls upon Kosovo's communities to cooperate in the peace process".

26 "Encourages states and organizations to provide humanitarian assistance".

27 "Encourages refugee return and protection of minority communities".

28 "Encourages participation of Kosovo's people in governance".

29 "Calls for regional cooperation in maintaining stability".

As for the binding obligations:

1 - Its preamble, does not include binding obligations, however it implicitly recalls Chapter VII of the Charter when it states: “*Determining* that the situation in Lebanon constitutes a threat to international peace and security”.

2 - OPs 11<sup>30</sup>, 15<sup>31</sup> and 16<sup>32</sup>, which use the word “decides”.

3 - The mandate of UNIFIL determined in OP 12, which covers taking “all necessary action in areas of deployment of its forces and as it deems within its capabilities, to ensure that its area of operations is not utilized for hostile activities of any kind, [and] to resist attempts by forceful means to prevent it from discharging its duties under the mandate of the Security Council, and to protect United Nations personnel, facilities, installations and equipment, ensure the security and freedom of movement of United Nations personnel, humanitarian workers and, without prejudice to the responsibility of the Government of Lebanon, to protect civilians under imminent threat of physical violence”. Add to this, the assistance to the Lebanese government in preventing unauthorized weapons shipments (OP 15).

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30 “11. *Decides*, in order to supplement and enhance the force in numbers, equipment, mandate and scope of operations, to authorize an increase in the force strength of UNIFIL to a maximum of 15,000 troops, and that the force shall, in addition to carrying out its mandate under resolutions 425 and 426 (1978):

- (a) Monitor the cessation of hostilities;
- (b) Accompany and support the Lebanese armed forces as they deploy throughout the South, including along the Blue Line, as Israel withdraws its armed forces from Lebanon as provided in paragraph 2;
- (c) Coordinate its activities related to paragraph 11 (b) with the Government of Lebanon and the Government of Israel;
- (d) Extend its assistance to help ensure humanitarian access to civilian populations and the voluntary and safe return of displaced persons;
- (e) Assist the Lebanese armed forces in taking steps towards the establishment of the area as referred to in paragraph 8;
- (f) Assist the Government of Lebanon, at its request, to implement paragraph 14”.

31 “15. *Decides* further that all States shall take the necessary measures to prevent, by their nationals or from their territories or using their flag vessels or aircraft:

- (a) The sale or supply to any entity or individual in Lebanon of arms and related materiel of all types, including weapons and ammunition, military vehicles and equipment, paramilitary equipment, and spare parts for the aforementioned, whether or not originating in their territories; and
- (b) The provision to any entity or individual in Lebanon of any technical training or assistance related to the provision, manufacture, maintenance or use of the items listed in subparagraph (a) above; except that these prohibitions shall not apply to arms, related material, training or assistance authorized by the Government of Lebanon or by UNIFIL as authorized in paragraph 11”.

32 “*Decides* to extend the mandate of UNIFIL until 31 August 2007, and *expresses its intention* to consider in a later resolution further enhancements to the mandate and other steps to contribute to the implementation of a permanent ceasefire and a long-term solution”.

As for the recommendations: OPs 3, 4, 7, 9, 10, 17 and 18 are mere recommendations based on the word used at the beginning of each one of them: “emphasizes”, “Reiterates”, “affirms”, “invites”, “requests” and “stresses”.

The freedom of movement of UNIFIL has been regulated in two distinct areas, namely the one “throughout the south [of Lebanon]” (1) and the one “throughout the [entire Lebanese] territory” (2).

### **1 - throughout the south [of Lebanon].**

Ops 11 (b, c and e) and 8 specify that the force “shall”, even in the absence of a request from the Lebanese Government<sup>33</sup>:

- Coordinate with the Government of Lebanon and the Government of Israel, its activities of accompanying and support the LAF as they deploy throughout the South, including along the Blue Line, as Israel withdraws its armed forces from Lebanon.

- Assist the Lebanese armed forces in taking steps towards the establishment between the Blue Line<sup>34</sup> and the Litani river of an area free of any armed personnel, assets and weapons other than those of the Government of Lebanon and of UNIFIL.

The two words “decides” and “shall” used in OP11 clearly indicate that UNIFIL has the two obligations –among other obligations- to coordinate its activities with LAF in the course of its mission to accompany and support LAF as they deploy throughout the south, and to assist LAF in the establishment of a specific area between the Litani river and the blue line. Some might contend that these obligations of coordination and assistance impose limitations to the freedom of movement of UNIFIL to the extent where they would mean that UNIFIL would request the authorization of LAF before they operate.

It is inconceivable that UNIFIL would require prior authorization to implement its mission, because this would hinder its operations which is a fact that could not be neither accepted nor ordered by the Security Council. Furthermore, “coordination” may be interpreted as a security enhancing mechanism for UNIFIL’s movement, in the meaning that it would be up to UNIFIL to assess the need to coordinate its movement with LAF. Therefore, the lack of coordination

33 It is important to emphasize that the resolution was unanimously adopted by the Lebanese Council of Ministers on 12 August 2006 and approved by the Israeli Council of Ministers on 14 August 2006, with one abstention.

34 A 120-kilometer Line established by the United Nations, in coordination with Lebanese and Israeli officials to confirm the withdrawal of Israeli forces from Lebanese territory in compliance with Security Council Resolution 425 (1978). <https://unifil.unmissions.org/faqs> (consulted on 25 July 2025).



would be considered as a willing act of UNIFIL based on its assessment that there are no security threats on its personnel.

## **2 - Throughout the [entire] territory.**

Based on OP 12<sup>35</sup> it is only upon “a request from the Government of Lebanon to deploy an international force to assist it to exercise its authority throughout the territory”, that UNIFIL is authorized by the Security Council “to take all necessary action in areas of deployment of its forces and as it deems within its capabilities, to ensure that its area of operations is not utilized for hostile activities of any kind ... and to ensure the security and freedom of movement of United Nations personnel ...”.

Therefore, the freedom of movement of UNIFIL throughout the Lebanese territory as determined in OP 12 shall be exercised upon a request made by the Lebanese Government to deploy its forces in specific areas of operations. No reference at any level has been made to any authorization that UNIFIL needs to receive before conducting any operation under OP 12, however a potential coordination, even if it is not explicitly mentioned in this context, could not be excluded especially that it aims at preserving the security of UNIFIL.

It is particularly important to analyze the following subsequent UNSCRs that extended annually the mandate of UNIFIL (henceforth “extending UNSCRs”), in order to determine in specific how the freedom of movement of the force was reshaped over the years so far.

### **C. The extending UNSCRs.**

As a principle, the freedom of movement of UNIFIL has been reshaped on several stages in both following areas:

#### **a - The principle of freedom of movement.**

This principle has been stressed on implicitly in UNSCR 2749 (2024) which referred to the principle by stating that “[the Security Council] ... urging all parties to take all measures to respect the safety and security of UNIFIL personnel and premises, as well to allow UNIFIL to carry out the functions envisaged in

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35 “Acting in support of a request from the Government of Lebanon to deploy an international force to assist it to exercise its authority throughout the territory, authorizes UNIFIL to take all necessary action in areas of deployment of its forces and as it deems within its capabilities, to ensure that its area of operations is not utilized for hostile activities of any kind, to resist attempts by forceful means to prevent it from discharging its duties under the mandate of the Security Council, and to protect United Nations personnel, facilities, installations and equipment, ensure the security and freedom of movement of United Nations personnel, humanitarian workers and, without prejudice to the responsibility of the Government of Lebanon, to protect civilians under imminent threat of physical violence”

resolution 1701 (2006)”, and explicitly in all of the other extending UNSCRs<sup>36</sup> where it has been stated in slightly different forms that the Security Council urges all parties to cooperate fully with the United Nations and UNIFIL and to abide scrupulously by their obligation to respect the safety of the UNIFIL and other United Nations personnel, including by avoiding any course of action which endangers United Nations personnel and by ensuring UNIFIL is accorded full freedom of movement within its area of operation.

#### **b - The extent of the freedom of movement.**

Starting from 2010, all of the extending UNSCRs<sup>37</sup> -except for UNSCR 2749 (2024)- have added to the freedom of movement of UNIFIL a limitation relevant to the fact that its exercise should be “in conformity with its mandate and its rules of engagement”. The Security Council called on all parties to abide scrupulously by their obligation to respect the safety of UNIFIL and other United Nations personnel and to ensure that the freedom of movement of UNIFIL is fully respected, in conformity with its mandate and its rules of engagement.

#### **c - Coordinated and adjacent patrols.**

Starting from 2011, all of the extending UNSCRs<sup>38</sup> -except for UNSCR 2749 (2024)- has shed light on a particular side of cooperation between UNIFIL and LAF which is “coordinated and adjacent patrols”. The SC called on all parties for further cooperation between UNIFIL and the Lebanese Armed Forces in particular regarding coordinated and adjacent patrols. It is crucial to mention that the word “patrol” has not been used before 2011, in any of the UNSCRs to describe the operations of UNIFIL. There will be later on a comparison between the word “patrol” and the word “movement” used in SOFA.

#### **d - Announced and unannounced patrols.**

In both UNSCRs 2650 (2022) OP 17 and 2695 (2023) OP 16, the Security Council mentioned clearly that the freedom of movement of UNIFIL covers not only announced but unannounced patrols as well. In both UNSCRs, the Security

36 1773 (2007) OP.4; 1832 (2008) OP.3; 1884 (2009) OP.3; 1937 (2010) OP.5; 2004 (2011) OP.5; 2064 (2012) OP.5; 2115 (2013) OP.6; 2172 (2014) OP.7; 2236 (2015) OP.7; 2305 (2016) OP.8; 2373 (2017) OP.10; 2433 (2018) OP.13; 2485 (2019) OP.15; 2539 (2020) OP.15; 2591 (2021) OP.16; 2650 (2022) OP.16; 2695 (2023) OP.15.

37 1937 (2010) OP. 5, 2004 (2011) OP. 5, 2064 (2012) OP. 5, 2115 (2013) OP. 6, 2172 (2014) OP. 7, 2236 (2015) OP. 7, 2305 (2016) OP. 8, 2373 (2017) OP. 10, 2433 (2018) OP. 14, 2485 (2019) OP. 15, 2539 (2020) OP. 15, 2591 (2021) OP. 16, 2650 (2022) OP. 16, 2695 (2023) OP. 15.

38 2004 (2011) OP. 5, 2064 (2012) OP. 5, 2115 (2013) OP. 6, 2172 (2014) OP. 7, 2236 (2015) OP. 7, 2305 (2016) OP. 8, 2373 (2017) OP. 10, 2433 (2018) OP. 13, 2485 (2019) OP. 15, 2539 (2020) OP. 15, 2591 (2021) OP. 15, 2650 (2022) OP. 15, 2695 (2023) OP. 14.

Council “*Demands* the parties cease any restrictions and hindrances to the movement of UNIFIL personnel and guarantee the freedom of movement of UNIFIL, including by allowing announced and unannounced patrols”.

**Paragraph 2: Status of Forces Agreement (SOFA).**

The 1995 Agreement between the United Nations and The Government of Lebanon on The Status of the United Nations Interim Force in Lebanon, highlighted the fact that the freedom of movement of UNIFIL throughout Lebanon shall be coordinated with the Lebanese Government with respect to large movements of personnel, stores or vehicles through airports or on railways or roads used for general traffic within Lebanon. Article X (12) provides: "UNIFIL and its members shall enjoy, together with its vehicles, vessels, aircraft and equipment, freedom of movement throughout Lebanon. That freedom shall, with respect to large movements<sup>39</sup> of personnel, stores or vehicles through airports or on railways or roads used for general traffic within Lebanon, be co-ordinated with the Government. The Government undertakes to supply UNIFIL, where necessary, with maps and other information, including locations of mine fields and other dangers and impediments, which may be useful in facilitating its movements."

At this stage a question could be raised regarding the exact meaning of “Large Movements”, does it mean “patrols” whether announced or unannounced, coordinated or adjacent? It is important in this context to put SOFA in the legal frame of UNSCR 425 which determines the mandate of UNIFIL by “confirming the withdrawal of Israeli-forces, restoring international peace and security and assisting the Government of Lebanon in ensuring the return of its effective authority in the area” (OP 3). It is obvious that the mission of UNIFIL established under UNSCR 425 has been extensively expanded in UNSCR 1701 (OP 11 – b, c and e), therefore it is unlikely that the word “movement” would mean “patrol” which is a concept that has been introduced in the extending UNSCRs.

Article X (12) is therefore is the legal foundation that proves that the coordination with LAF is a binding obligation for UNIFIL regarding only large scale movements of personnel, stores or vehicles through airports or on railways or roads used for general traffic within Lebanon. It follows that small movements are, in principle, exempt from coordination requirement. Movements in this context would not refer to any operational, military tasks but only to mere “travel and transport” as shows the title of paragraph 12.

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39 The French version of Article X (12) uses the phrase “déplacements importants,” corresponding to “large movements.”

**Paragraph 3: Binding obligations.**

UNIFIL has therefore, regarding its freedom of movement, according to SOFA (1) and the above-mentioned UNSCRs (2-7) the following binding obligations:

1 - Coordinating with the Lebanese Government its large movements of personnel, stores or vehicles through airports or on railways or roads used for general traffic within Lebanon.

2 - confirming the withdrawal of Israeli-forces, restoring international peace and security and assisting the Government of Lebanon in ensuring the return of its effective authority in the area.

3 - taking all necessary action in areas of deployment of its forces and as it deems within its capabilities, to ensure that its area of operations is not utilized for hostile activities of any kind, and ensuring the security and freedom of movement of United Nations personnel.

Coordinating with the Government of Lebanon and the Government of Israel, its activities of accompanying and support the LAF as they deploy throughout the South, including along the Blue Line, as Israel withdraws its armed forces from Lebanon.

4 - Assisting the Lebanese armed forces in taking steps towards the establishment between the Blue Line<sup>40</sup> and the Litani river of an area free of any armed personnel, assets and weapons other than those of the Government of Lebanon and of UNIFIL.

5 - Cooperating with the Lebanese Government regarding coordinated and adjacent patrols.

6 - Implementing its mission, in conformity with its mandate and its rules of engagement, with freedom of movement that includes announced and unannounced patrols.

Those obligations stand compatible with both UNSCRs 2650 (2022) OP.16 and 2695 (2023) OP.15. which state that SC “*reaffirms* that, pursuant to the Agreement on the Status of the United Nations Interim Forces in Lebanon (SOFA) between the Government of Lebanon and the United Nations, UNIFIL does not require prior authorization or permission to undertake its mandated tasks and that UNIFIL is authorized to conduct its operation independently...”. The Lebanese

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40 A 120-kilometer Line established by the United Nations, in coordination with Lebanese and Israeli officials to confirm the withdrawal of Israeli forces from Lebanese territory in compliance with Security Council Resolution 425 (1978). <https://unifil.unmissions.org/faqs> (consulted on 25 July 2025).

Government has not so far objected to this interpretation; therefore, it is settled that such authorizations are not required for UNFIL to implement its mission.

However, The Lebanese Government should be aware that if a conflict arises between SOFA and all the relevant UNCRs, the latter shall prevail pursuant to Article 103 of the Charter of the United Nations which states that: "In the event of a conflict between the obligations of the Members of the United Nations under the present Charter and their obligations under any other international agreement, their obligations under the present Charter shall prevail"<sup>41</sup>.

## **Section 2: The input of UNSCR 2790 (2025).**

The first remarkable observation in UNSCR 2790 is that unlike all of the previous extending UNSCRs, the Security Council Determines "that the situation in Lebanon continues to constitute a threat to international peace and security" which recalls Chapter VII of the Charter relevant to "Action with Respect to Threats to the Peace, Breaches of the Peace, and Acts of Aggression".

The second observation is that The Security Council decided "to extend for a final time the mandate of UNIFIL as set out by resolution 1701 (2006) until 31 December 2026" with a focus on the freedom of movement of the UNIFIL (OP 11).

The third and most remarkable observation is that UNSCR 2790 determined in an unprecedented manner and in practical clear terms the content of the freedom of movement, by specifying that the UNIFIL:

1 - will implement "operational activities aimed at discovering tunnels and weapons caches, and its tactical responsiveness to mitigate denials of its freedom of movement, and to implement a proactive approach to strategic communications to support UNIFIL's activities in this regard" (OP 11).

2 - will have prompt and full access to sites of its choice for the purpose of swift investigation, including all locations of interest, within its mandate (OP 12).

The Lebanese Government has not expressed any reservation regarding the freedom of movement conferred upon UNIFIL under UNSCR 2790 which leaves no room for any doubts regarding its in implementing its operations with no need of any authorization even from the LAF.

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41 See also "A binding decision of the Security Council, adopted under Chapter VII of the Charter, prevails over any other international agreement or obligation that conflicts with it. The obligations imposed by Article 25 of the Charter extend to all Member States, requiring compliance with the measures decided upon by the Security Council." (ICJ, *Legal consequences for States of the continued presence of South Africa in Namibia (South West Africa) notwithstanding Security Council resolution 276 (1970)*.)

## Conclusion

In absence of any contrary interpretation made by the Lebanese Government, the straightforward interpretation of SOFA and relevant UNSCRs indicates that UNIFIL is not required to be granted any authorization in order to undertake patrols whether announced or announced throughout southern Lebanon. As for the remaining Lebanese territory, if the Lebanese Government requests UNIFIL to deploy an international force to assist it to exercise its authority, UNIFIL is authorized by SC to take all necessary action in areas of deployment of its forces and as it deems within its capabilities, to ensure that its area of operations is not utilized for hostile activities of any kind [...] and to ensure the security and freedom of movement of United Nations personnel. In any case, large movements (not patrols) of personnel, stores or vehicles through airports or on railways or roads used for general traffic within Lebanon, have to be co-ordinated with the Lebanese Government

It would have been sufficient to insert the following two paragraphs instead of going through abundant details as in UNSCR 2790 (2025):

“The Security Council [...]

“*Urges* all parties to cooperate fully with the United Nations and UNIFIL and to abide scrupulously by their obligation to respect the safety of the UNIFIL and other United Nations personnel, including by avoiding any course of action which endangers United Nations personnel and by ensuring UNIFIL is accorded full freedom of movement within its area of operation, in conformity with its mandate and its rules of engagement, in particular regarding coordinated and adjacent patrols ; that freedom shall, with respect to large and small movements of personnel, stores or vehicles through airports or on railways or roads or any other infrastructure used for general traffic throughout Lebanon, be co-ordinated with the Government;

*reaffirms* that, pursuant to the Agreement on the Status of the United Nations Interim Forces in Lebanon (SOFA) between the Government of Lebanon and the United Nations, UNIFIL does not require prior authorization or permission to undertake its mandated tasks and that UNIFIL is authorized to conduct its operation independently, including announced and unannounced patrols.”

